

President and Vice-President Election Act, 2017

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ACT RELATING TO THE ELECTION OF THE PRESIDENT AND VICE-PRESIDENT, 2074

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Preamble: Whereas it is desirable to make necessary provisions relating to the election of the President and Vice-President,

Parliament-Legislature, pursuant to Sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Act Relating to the Election of the President and Vice-President, 2074."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Court" means the Supreme Court.

(b) "Commission" means the Election Commission constituted pursuant to Article 284 of the Constitution.

(c) "Vice-President" means the Vice-President of Nepal pursuant to Article 67 of the Constitution.

(d) "Candidate" means a person nominated as a candidate for the election of the President or Vice-President.

(e) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(f) "Electoral College" means the Electoral College pursuant to Section 3.

(g) "Election" means the election of the President or Vice-President.

(h) "Election Officer" means the Election Officer appointed pursuant to Section 7, and the said term also includes the Assistant Election Officer.

(i) "Election Representative" means the Election Representative appointed pursuant to Section 27.

(j) "Provincial Assembly" means the Provincial Assembly constituted pursuant to Article 176 of the Constitution.

(k) "Voter" means a person whose name is included in the voters' list pursuant to Sub-section (3) of Section 3.

(l) "Presiding Officer" means the Presiding Officer appointed pursuant to Section 10.

(m) "Ballot Paper" means the ballot paper arranged for voting in an election, and the said term also includes,

where arrangements are made for voting through electronic means, the ballot paper used in such electronic device or the digital ballot paper installed in such device.

(n) "Ballot Box" means the ballot box arranged by the Commission for placing marked ballot papers, and the said term also includes, where voting is done through electronic means, the electronic device that records the voting mark made in such a manner.

(o) "President" means the President of Nepal pursuant to Article 61 of the Constitution.

(p) "Constitution" means the Constitution of Nepal.

(q) "Federal Parliament" means the House of Representatives constituted pursuant to Article 84 of the Constitution and the National Assembly constituted pursuant to Article 86 of the Constitution. Chapter-2
Electoral College and Election Program

3.

Electoral College: (1) For the purpose of election, there shall be an Electoral College consisting of the members of the Federal Parliament and the members of the Provincial Assembly as voters. (2) Notwithstanding anything contained in Sub-section (1), solely by reason of the office of any member of the Federal Parliament or Provincial Assembly being vacant or the election of any Provincial Assembly not having been held, there shall be no obstacle to the formation of the Electoral College. (3) For the purpose of Sub-section (1), the Commission shall prepare and publish a voters' list as prescribed, including the names of the members currently existing in the Electoral College. 4. Fixing Date of Election of President: (1) The Commission shall, at least one month before the expiry of the term of office of the President, or if the office falls vacant due to any other reason, fix the date of election so that the election is held within one month from the date of such vacancy, and shall give information thereof to the Government of Nepal. (2) Notwithstanding anything contained in Sub-section (1), in the case of the first election held after the commencement of this Act, the Commission shall fix the date of election so that the election is held within one month of the formation of the Federal Parliament and the Provincial Assembly, and shall give information thereof to the Government of Nepal. (3) A notice fixing the date for the election of the President pursuant to Sub-section (1) and (2) shall be published in the Nepal Gazette. 5. Fixing Date of Election of Vice-President: (1) The Commission shall, at least one month before the expiry of the term of office of the Vice-President, or if the office falls vacant due to any other reason, fix the date of election so that the election is held within one month from the date of such vacancy, and shall give information thereof to the Government of Nepal. (2) Notwithstanding anything contained in Sub-section (1), in the case of the first election held after the commencement of this Act, or in a situation where the offices of the President and Vice-President fall vacant or are about to fall vacant at the same time, the Commission shall, within seven days of the election of the President and the declaration of the result thereof, fix the date of election and shall give information thereof to the Government of Nepal. (3) A notice fixing the date for the election of the Vice-President pursuant to Sub-section (1) and (2) shall be published in the Nepal Gazette. 6.

Notice of Election Program: (1) After the publication of the notice fixing the date of election pursuant to Section 4 or 5, the Commission shall publish a notice of the election program. (2) The election program pursuant to Sub-section (1) shall specify the date, time and place for filing nomination papers of candidates, publishing the list of candidates whose nomination papers have been filed, filing complaints against candidates, scrutiny of nomination papers, publishing the list of nominated candidates, withdrawal of candidature, publication of the final list of candidates, and voting. (3) The election program pursuant to this

Section shall be published in the Nepal Gazette. (4) The concerned Election Officer shall publish at the office of the Election Officer the notice pursuant to the election program published by the Election Commission pursuant to Sub-section (1). (5) While publishing the election program pursuant to Sub-section (1), it shall be published in such a manner that, after the publication of the final list of candidates, there remains a maximum period of fifteen days for election campaigning. Chapter-3 Election Officer, Presiding Officer and Other Employees 7. Appointment of Election Officer: For the work to be performed in the election pursuant to the Constitution, this Act and prevailing Federal law, the Commission shall, on the recommendation of the Judicial Council, appoint a Judge of a High Court as the Election Officer. 8. Duties, Functions and Powers of Election Officer: (1) It shall be the duty of the Election Officer to conduct or cause to be conducted the election in a clean, impartial and free manner, subject to the direction of the Commission. (2) The Election Officer may, as necessary, delegate his/her powers to the employees assigned for the election work. Provided that the power to scrutinize nomination papers, to accept or reject nomination papers, and to declare the final result of the counting of votes shall not be delegated. (3) The Election Officer may assign or engage employees of the Government of Nepal for any work relating to the election. (4) Other duties, functions and powers of the Election Officer shall be as prescribed. 9. Appointment of Assistant Election Officer and Other Employees: (1) The Election Officer may appoint Assistant Election Officers and other employees in such number as prescribed by the Commission. (2) It shall be the duty of the Assistant Election Officer and other employees to perform election related work under the direct direction and control of the Election Officer. 10.

Explanation: For the purpose of clause (e), "office of profit" means, except for a political office to be filled by election or nomination, any other office receiving remuneration or financial benefits from the government fund. 12. Disqualification of Candidate: Notwithstanding anything contained elsewhere in this Act, the following persons shall be deemed disqualified to be a candidate in the election:-

- (a) One who does not possess the qualification pursuant to Section 11,
- (b) One who is in employment receiving remuneration in the Government of Nepal, Provincial Government or local level, or in an institution owned or controlled by the Government of Nepal, Provincial Government or local level, or in an institution receiving grants from the Government of Nepal, Provincial Government or local level,
- (c) One who has been punished under the prevailing law relating to election and a period of two years has not elapsed since the date of serving such punishment,
- (d) One who has been punished for an offence relating to corruption, rape, human trafficking and transportation, sale, distribution, export or import of narcotic drugs, money laundering, passport misuse, kidnapping, or other criminal offences involving moral turpitude, or has been punished with life imprisonment or imprisonment for twenty years or more for any offence, and such verdict has become final,
- (e) One who has been punished with imprisonment for an offence relating to organized crime, or with imprisonment of less than twenty years for an offence relating to culpable homicide, and a period of six years has not elapsed since the date of serving such punishment,
- (f) One who has been punished with imprisonment for an offence relating to caste discrimination and untouchability, witchcraft, or polygamy, and a period of three years has not elapsed since the date of serving such punishment,
- (g) One who has been punished with imprisonment for five years or more for an offence other than those

mentioned in clauses (d) and (e), and a period of six years has not elapsed since the date of serving such punishment,

(h) Being on the blacklist pursuant to prevailing law, during such period,

(i) Being in imprisonment, during the period of imprisonment,

(j) One who is of unsound mind. 13.

Decision Regarding Disqualification of Candidate: (1) In a situation where nomination for candidacy for President or Vice-President has been filed but the election result has not yet been declared, if any person believes that a candidate is or has become disqualified, a complaint may be filed before the Commission through the concerned Election Officer with clear evidence regarding that matter. (2) Upon receipt of a complaint pursuant to Sub-section (1), the Election Officer may give a period of seven days to such candidate and ask for an explanation regarding that matter. (3) After receiving the explanation pursuant to Sub-section (2), or if no explanation is received within the period, the Election Officer shall, mentioning that fact, forward the complaint filed pursuant to Sub-section (1) and related documents to the Commission as soon as possible. (4) After receiving the documents along with the complaint pursuant to Sub-section (3), the Commission may, if it deems necessary, inquire with the concerned candidate or ask for additional evidence on the matter. (5) The Commission shall, by examining and inquiring into the documents along with the complaint received from the Election Officer pursuant to Sub-section (3), decide on the disqualification of the candidate within seven days from the date of receipt of the complaint. (6) The procedure to be followed while deciding on the disqualification of a candidate pursuant to Sub-section (5) shall be as determined by the Commission. (7) Notwithstanding anything contained elsewhere in this Section, solely due to the Commission not having decided on the disqualification of any candidate pursuant to this Section, there shall be no effect on the proceedings of such election. 14. Vacation of Office: (1) If it is determined by the Court that any person elected to the office of President or Vice-President was disqualified pursuant to Section 12, he/she shall be released from such office. (2) The Commission shall give information of the vacation of office pursuant to Sub-section (1) to the concerned person. (3) A notice of the vacation of office of the President or Vice-President pursuant to Sub-section (1) shall be published in the Nepal Gazette. 15. Calculation of Age of Candidate: While calculating the age of a candidate for being a candidate in the election, the candidate must have completed forty-five years of age by the day of filing the nomination paper. 16.

Nomination of Candidate: (1) A person who is not disqualified pursuant to Section 12 may be nominated as a candidate in the election. (2) While nominating a candidate pursuant to Sub-section (1), there shall be five proposers and five seconders whose names are included in the voters' list pursuant to Sub-section (3) of Section 3. (3) If any person is proposed pursuant to Sub-sections (1) and (2), he/she shall write his/her consent on the nomination paper and affix signature or seal. (4) A person may be nominated for the election by a maximum of two nomination papers. (5) While nominating a candidate for the office of Vice-President pursuant to this Section, a person of a different gender or community than the gender or community of the person elected to the office of President shall be nominated. Explanation: For the purpose of this Section, "community" means the Dalit, indigenous ethnic group (Adivasi Janajati), Khas Arya, Madhesi, Tharu or Muslim community. (6) If an election is to be held for the office of President while the Vice-President elected pursuant to this Act is in office, while nominating a candidate for that office, a person of a different gender or community than the gender or community of the person holding the office of Vice-President shall be nominated. 17. Filing of Nomination of Candidate: (1) The nomination paper of a candidate shall be submitted to the concerned Election Officer by the candidate himself/herself, or by his/her representative, proposer or

second. (2) The concerned Election Officer shall examine whether the nomination paper submitted pursuant to Sub-section (1) is duly made according to this Act, and if it is duly made, register it and give a copy thereof to the person bringing the nomination paper for registration. (3) If a person brings a nomination paper for registration which has no proposer or seconder, has a duplicate proposer or seconder, lacks the signature or seal of the proposer, seconder or the person intending to be a candidate, or is otherwise not in order, the Election Officer shall have the defects corrected and register such nomination paper.

If any person wishes to get the nomination paper registered without correcting the defects in this manner, the Election Officer shall mention that fact on the nomination paper and give notice thereof to the person getting the nomination paper registered.

(4) Other documents to be submitted along with the nomination paper shall be as prescribed.

(5) After the expiry of the time for filing nomination papers, the Election Officer shall publish the list of candidates whose nomination papers have been filed at the date, time and place specified in the notice of the election program. 18. Filing of Claim and Objection: Any candidate or his/her representative wishing to file a claim or objection regarding the qualification of any candidate whose nomination paper has been registered pursuant to Section 17 may file a complaint before the Election Officer at the date, time and place specified in the notice of the election program. 19. Scrutiny of Nomination Papers: (1) While scrutinizing nomination papers registered pursuant to Section 17, one of the candidate, his/her representative, proposer or seconder shall be present at the date, time and place specified in the notice of the election program.

(2) The Election Officer shall scrutinize the nomination papers of all candidates in the presence of the persons mentioned in Sub-section (1). Provided that, if any candidate, his/her representative, proposer or seconder who is required to be present is not present, this Sub-section shall not be deemed to prevent the scrutiny of nomination papers and the making of a decision on the matter according to law.

(3) While scrutinizing the nomination papers of candidates pursuant to Sub-section (2), if a complaint has been filed against any candidate pursuant to Section 18, the Election Officer shall also make necessary inquiry and decide on that matter.

(4) The Election Officer may suspend the proceedings relating to the scrutiny of nomination papers to be conducted pursuant to this Section in the following circumstances, and shall give information of such suspension of proceedings to the Commission:-

(a) If a riot or other abnormal situation occurs at the place during the time of scrutiny of nomination papers,

(b) If a situation beyond control occurs due to a natural disaster.

(5) If proceedings relating to the scrutiny of nomination papers are suspended pursuant to Sub-section (4), the Election Officer shall fix a time and place and scrutinize the nomination papers as soon as possible, also based on any direction given by the Commission.

(6) Other provisions relating to the scrutiny of nomination papers shall be as prescribed. 20.

Circumstances for Rejection of Nomination Paper: A nomination paper shall be rejected in the following circumstances:- (a) If the candidate does not possess the qualification pursuant to the Constitution and this Act, (b) If the consent of the person intending to be a candidate is not given, or if the signature or seal of that person or his/her proposer and seconder is absent, or if the signature or seal is forged, (c) If the nomination paper is not registered within the time specified pursuant to Sub-section (2) of Section 6, (d) If the nomination

paper is not submitted as mentioned in Sections 16 and 17, (e) If it is otherwise not in due form according to this Act. 21. List of Candidates: After completing the scrutiny of nomination papers, the Election Officer shall prepare a list of candidates according to the nomination papers that are in due form according to law, and publish a copy thereof at his/her office. 22. Withdrawal of Candidature: (1) If any candidate wishes to withdraw his/her name from the list of candidates, he/she may withdraw his/her name by giving written notice to the Election Officer within the time specified pursuant to Sub-section (2) of Section 6. (2) The notice of withdrawal of candidature pursuant to Sub-section (1) shall be submitted by the candidate himself/herself or by his/her representative. (3) Once the notice of withdrawal of candidature pursuant to Sub-section (1) is submitted to the Election Officer, such notice shall not be cancelled or withdrawn. (4) If the Election Officer is satisfied as to the truth of the notice submitted pursuant to Sub-section (1) or (2), he/she shall remove the name of such candidate from the list of candidates. The Election Officer shall immediately publish a notice of such removal of name at his/her office. 23. Final List of Candidates: (1) After the expiry of the time specified for withdrawal of candidature pursuant to Sub-section (2) of Section 6, the Election Officer shall prepare a list of the remaining candidates and immediately publish a copy thereof at his/her office, and shall send a copy thereof to the Commission. (2) In the list pursuant to Sub-section (1), the names of candidates shall be written consecutively according to the Nepali alphabetical order. 24. Election Unopposed: If, at the time of publishing the final list of candidates pursuant to Section 23, only one candidate remains for the election of President or Vice-President, the Election Officer shall declare such candidate elected unopposed as prescribed. 25.

Death of Candidate: (1) If, before or after the publication of the final list of candidates pursuant to Section 23, any candidate dies and written notice thereof is received from the Election Representative or any other person, and the Election Officer is satisfied of that fact, the Election Officer shall immediately suspend the remaining program relating to such election and give information thereof to the Commission. (2) The Election Officer shall post at his/her office a notice of the suspension of the program pursuant to Sub-section (1) for the information of other candidates as well. (3) Upon receipt of information pursuant to Sub-section (1), if the death occurred before the publication of the final list of candidates, the Commission shall re-determine the program relating to the nomination of candidates in such a manner that the voting program of such election is not affected, and if the death occurred after the publication of the final list of candidates, the Commission shall re-determine the date of voting and other programs under this Chapter and send them to the Election Officer. (4) Notwithstanding anything contained in Sub-section (3), if the election program is suspended due to the death of a candidate and the period required to complete the work as mentioned in the election program pursuant to Sub-section (2) of Section 6 exceeds ten days, another program shall not be published again, and the election program shall be determined in such a manner that the work relating to the nomination of candidates is completed within the time period of the same program, without hindering the voting work. (5) If the election program is suspended pursuant to Sub-section (1), a candidate who has previously submitted a nomination paper shall not be required to submit a nomination paper again. 26. Identity Card for Candidate: The Election Officer shall provide an identity card as prescribed by the Commission to the candidate remaining in the final list of candidates pursuant to Section 23. Chapter-5 Representatives of Candidates 27.

Election Representative: (1) If a candidate appoints any person as his/her Election Representative for the election, written notice thereof shall be given to the Election Officer. (2) The Election Representative appointed pursuant to Sub-section (1) may be revoked by the candidate at any time and another Election Representative may be appointed, and written notice of such appointment of another Election Representative shall be given immediately to the concerned Election Officer. (3) It shall be the duty of the Election

Representative appointed pursuant to Sub-section (1) to perform the work which is to be performed by the Election Representative as mentioned in this Act and the rules made under this Act. (4) The qualification of the Election Representative shall be as prescribed. 28. Polling Representative and Counting Representative: (1) The candidate or the Election Representative may appoint polling representatives as prescribed for each polling center, and written notice of such appointment of polling representatives shall be given to the Presiding Officer and the Election Officer. (2) The candidate or the Election Representative may appoint counting representatives as prescribed to be present at the counting place, and written notice of such appointment of counting representatives shall be given to the Election Officer. (3) The candidate or the Election Representative may, at any time, revoke the polling representative or counting representative appointed pursuant to Sub-section (1) or (2) and appoint another polling representative or counting representative. (4) If another polling representative is appointed pursuant to Sub-section (3), information shall be given immediately to the Presiding Officer, and if another counting representative is appointed, information shall be given immediately to the Election Officer. (5) It shall be the duty of the polling representative and counting representative appointed pursuant to Sub-section (1) or (2) to perform the work which is to be performed by the polling representative and counting representative as mentioned in this Act and the rules made under this Act. (6) The number and qualification of polling representatives and counting representatives shall be as prescribed. 29.

Absence of Candidate or any Representative: If an Election Representative, polling representative or counting representative is not appointed as per this Act and the rules made under this Act, or if the candidate or any of his/her representatives is not present in a situation where they are required to be present, or if any of them fails to perform any work to be done by them, the work of voting, counting of votes or declaration of election result shall not be halted solely for that reason, and such work shall be deemed to have been done according to law. Chapter-6 Polling Centre and Voting 30. Polling Centre: (1) For the election, a polling centre shall be located at a place designated by the Commission. (2) Other provisions relating to the polling centre shall be as prescribed. 31. Ballot Paper: (1) The Commission shall arrange ballot papers for the election. (2) In the ballot paper pursuant to Sub-section (1), the names of candidates shall be included consecutively according to the Nepali alphabetical order. 32. Ballot Box and Other Election Materials: (1) For voting, the ballot box and election materials as prescribed by the Commission shall be used. (2) Other provisions relating to the management of the ballot box and other election materials shall be as prescribed. 33. Time of Voting: On the date of voting, the time for voting shall be as specified in the notice pursuant to Sub-section (2) of Section 6. 34. Voting: (1) A voter shall vote at the polling centre assigned to him/her. (2) The voter shall take the ballot paper as prescribed for voting and cast the vote in the ballot box placed for that purpose. (3) A voter shall not vote in the name of any other person except in his/her own name. (4) No voter shall vote more than once or at more than one polling centre in the same election. (5) No voter shall, by any means, disclose to anyone whom he/she has voted for during the voting period. 35.

Procedure of Voting: (1) The Presiding Officer shall give a ballot paper to a voter present for voting at the polling centre, after completing the procedure as prescribed. (2) Before giving the ballot paper to the voter, the Presiding Officer shall mention the details as prescribed in the voters' list and give the ballot paper as prescribed. (3) The voter shall secretly affix a stamp or mark as prescribed on the ballot paper and vote. (4) While voting according to this Act, the voter shall affix the stamp or mark as per Sub-section (3) in the compartment of any one candidate of his/her choice on the ballot paper and drop it into the ballot box as prescribed to cast the vote. (5) Notwithstanding anything contained elsewhere in this Act, if electronic devices are used for the purpose of voting, the voter shall vote through the electronic device as prescribed. 36. Objection to Person Coming to Vote by Impersonation: (1) If any voter or person comes to take a ballot paper

to vote in the name of another voter by impersonation, a candidate, his/her representative or any voter of the same polling centre may object before the Presiding Officer by depositing a sum of one hundred rupees. (2) Upon objection pursuant to Sub-section (1), the Presiding Officer shall, after making necessary inquiries regarding the matter, decide immediately, and the objection raised and the decision thereon shall be recorded immediately in the decision book as prescribed by the Commission. (3) If the objection pursuant to Sub-section (1) is found to be valid, the Presiding Officer shall refund the deposit amount to the concerned person, and if the objection is found to be false, such deposit amount shall be forfeited. (4) If the objection pursuant to Sub-section (1) is found to be valid, the Presiding Officer shall impose a fine on the person coming to vote by such impersonation according to the Federal law relating to election offences and penalties. 37.

Voting may be Suspended in Special Circumstances: (1) If the Presiding Officer appointed at a polling centre is satisfied that due to any abnormal situation at the polling centre, or because of the inability to operate electronic devices for any reason, or due to disturbance, natural disaster or any reason beyond his/her control, the voting work cannot be conducted, he/she may immediately suspend the voting work at that polling centre and shall publish a notice thereof at the same place. (2) The Presiding Officer shall immediately give notice of the suspension of voting pursuant to Sub-section (1) to the Election Officer. (3) The Election Officer shall immediately give information of the suspension of voting pursuant to Sub-section (1) to the Commission. (4) After receiving information pursuant to Sub-section (3), unless the Commission directs otherwise, the Election Officer shall fix a date and time for re-voting, publish a notice and cause a re-vote. 38.

Entry into Polling Centre: (1) The Presiding Officer shall not allow entry into the polling centre to any person except the following:- (a) Voters, (b) The candidate or one Election Representative or polling representative of the candidate, (c) Observers permitted by the Commission, (d) Persons authorized by the Commission, Election Officer or Presiding Officer, (e) A child accompanying a voter, not exceeding five years of age, (f) A member of the same household accompanying a blind or physically disabled voter to assist him/her. (2) Notwithstanding anything contained in Sub-section (1), the Presiding Officer shall not allow entry into the polling centre to any person carrying any type of weapon, except security personnel deployed for the security of the polling centre, or any person who has consumed intoxicating substances. (3) Except for voters who have entered the polling centre and have yet to vote, after the expiry of the voting time, no other voter shall be allowed to enter or remain at the polling centre. 39. Disabled Voter: If a blind, physically disabled voter, or a voter who, due to any other reason, is unable to mark the ballot himself/herself, requests permission to bring along a member of his/her same household to assist in marking the ballot, or requests the Presiding Officer to assist in marking the ballot, and the Presiding Officer deems it appropriate, he/she may permit such household member to enter the place of marking the ballot with the voter based on proof of identity, or the Presiding Officer may mark the voter's ballot paper according to the voter's wish. 40.

Inspection: If any voter remains at the place of marking the ballot for more than a reasonable time, or if the Presiding Officer has any suspicion, he/she may enter the place of marking the ballot and conduct an inspection. 41. Unauthorized Occupation of Polling Centre: (1) A polling centre shall be deemed to have been unauthorizedly occupied in the following circumstances:- (a) If any person, by use of force, intimidation or threat, takes possession of the polling centre or the place designated for voting and affects the voting process, allows only supporters of any candidate to vote, or prevents other voters from voting, (b) If any person intimidates, threatens a voter to vote or not to vote for any candidate, blocks or obstructs the way or passage for voting, prevents entry or going to the polling centre or the place of voting, or (c) If any person prevents the Presiding Officer or employee deployed to conduct the voting from performing their duty, snatches the ballot papers, ballot boxes or voting materials under their responsibility, or similar acts affecting

the voting process in such a way that it cannot be conducted fairly, freely and in a normal manner. (2) If a polling centre is unauthorizedly occupied in any manner mentioned in clause (a), (b) or (c) of Sub-section (1), the Presiding Officer shall immediately suspend the voting and submit a report thereof to the Election Officer, and the Election Officer shall immediately submit it to the Commission. (3) Upon receipt of a report pursuant to Sub-section (2), the Commission, or the Election Officer upon receiving any direction from the Commission, may investigate the incident according to the direction of the Commission, and based on the report of such investigation, the Commission, or the Election Officer according to the direction of the Commission, may annul the voting at such polling centre. (4) In a polling centre where voting has been annulled pursuant to Sub-section (3), the Election Officer shall fix a date and time for re-voting and publish a notice thereof immediately, including at such polling centre. 42.

Loss or Damage to Ballot Box: (1) If the ballot box used for voting at any polling centre is accidentally lost or intentionally damaged, the Presiding Officer shall immediately submit a report of the incident to the concerned Election Officer. (2) Upon receipt of a report pursuant to Sub-section (1), or if the ballot box used for voting, which has been handed over by the Presiding Officer to the Election Officer, is snatched in any manner, intentionally damaged, or accidentally lost, the Election Officer shall immediately annul the voting at such polling centre and submit a report thereof to the Commission. (3) In a polling centre where voting has been annulled pursuant to Sub-section (2), the Election Officer shall fix a date and time for re-voting and publish a notice thereof immediately at such polling centre. 43. Sealing of Ballot Box: After the completion of voting, the Presiding Officer shall seal the ballot box containing the cast ballot papers, completing the procedure as prescribed by the Commission. 44. Handing over of Ballot Box to Election Officer: The Presiding Officer shall safely hand over the ballot box used for voting to the Election Officer. Chapter-7 Counting of Votes and Election Result 45. Election Officer to Count or Cause to Count Votes: The Election Officer shall count or cause to count the votes of the election under his/her direct supervision and control. 46. Notice of Counting of Votes: After receiving the ballot boxes containing ballot papers from all polling centres, the Election Officer shall publish a notice of the place, date and time of counting of votes for the information of the candidates. 47. Counting of Votes: (1) The Election Officer shall commence the counting of votes as prescribed at the place, date and time mentioned in the notice pursuant to Section 46. (2) The candidate, or his/her Election Representative or Counting Representative, may be present at the place, date and time of counting of votes pursuant to Sub-section (1). (3) While counting votes, the votes cast by members of the Federal Parliament and the votes cast by members of the Provincial Assembly shall be counted separately. 48.

Entry into Place of Counting of Votes: (1) The Election Officer shall not allow entry into the place of counting of votes to any person except the following:- (a) The candidate or one Election Representative or Counting Representative of the candidate, (b) Employees engaged in the counting work, (c) Office bearers or employees deployed by the Commission for monitoring or other purposes, (d) Observers permitted by the Commission, (e) Employees deployed for security, (f) Persons authorized by the Commission or the Election Officer. (2) Notwithstanding anything contained in Sub-section (1), the Election Officer shall not allow entry into the place of counting of votes to any person carrying any type of weapon, except security personnel deployed for the security of the counting place, or any person who has consumed intoxicating substances. (3) The Election Officer may order any person obstructing the counting work to leave the place of counting, and the person receiving such an order shall leave the place of counting. A person who disobeys such an order shall be sent out of such place by the security personnel as per the order of the Election Officer. 49. Continuous Counting of Votes: (1) Once the Election Officer commences counting of votes, the counting work shall be carried out continuously until the counting is completed. (2) If the counting work has to be stopped

midway due to a situation beyond control, the Election Officer shall seal the counted ballot papers, counting records, ballot papers remaining to be counted and the inventory of ballot boxes remaining to be counted in separate envelopes, bags or sacks and affix his/her seal. The candidate or his/her Election Representative or Counting Representative may also affix their seals on such envelopes, bags or sacks. (3) The counting work stopped pursuant to Sub-section (2) shall be recommenced as soon as possible. Notice of such recommencement of counting shall be given to the candidates, their Election Representatives or Counting Representatives present at that place and shall also be published at the place of counting. Provided that the counting work shall not be deemed to be hindered by the non-attendance of any candidate or his/her representative. 50.

Damage to Ballot Papers Before Completion of Counting: (1) If, before the completion of counting, the ballot papers used at any polling centre, the ballot box containing ballot papers, or the electronic device placed for voting are unlawfully taken away from the control of the Election Officer, opened, damaged, broken, lost or accidentally damaged, the Election Officer shall suspend the counting work and immediately submit a report thereof to the Commission. (2) Upon receipt of a report pursuant to Sub-section (1), if the Commission deems it necessary to conduct any inquiry into the incident, it may deploy a Commissioner or monitoring team of the Commission for inquiry. (3) If the Commission, based on the report pursuant to Sub-section (1) or the report of the Commissioner or monitoring team deployed for inquiry pursuant to Sub-section (2), determines that such ballot papers or ballot box were unlawfully taken away from the control of the Election Officer, opened, damaged, broken, lost or accidentally damaged, and that due to that reason the counting cannot be resumed, it shall declare all ballot papers of the polling centres affected by such act as invalid and annul the voting. (4) In a polling centre where voting has been annulled by the Commission pursuant to Sub-section (3), the Election Officer shall fix a place, date and time for re-voting and publish a notice thereof immediately at the polling centre.

51. Unauthorized Occupation of Counting Place: (1) A counting place shall be deemed to have been unauthorizedly occupied in the following circumstances:- (a) If any person, by use of force, intimidation or threat, takes possession of the counting place and affects the counting work, (b) If any person, with or without use of force, prevents the Election Officer or employee deployed for counting work from performing their duty, snatches the ballot papers, ballot boxes, electronic devices used for voting or other materials (?) ????? (?) ?????? ?????? ?????? ???? ?????????? ???????? ?? ?????? ?? ?????? ??? ?????? ???????? ??? ?????? ?????? ? ?????? ?????? ?????? ?????? ?????? ?????? ?????? ?????? ???, ????? ?? ?????? ?????? ?????? ?????? ??? ? (?) After having opened and inspected pursuant to an order of the court under sub-section (2), the court shall keep such documents or records sealed as they were.

No authority or body other than the court shall have the right to open and inspect such sealed envelope, bag, or sack.

(?) The documents or records referred to in this section shall be kept safe for three months from the date of final disposal of the case, if a case has been filed, and from the date of expiry of the period for filing a complaint, if no case has been filed.

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 ?????? ? 64. Not to breach confidentiality: (1) Except for a person authorized by law, no employee,

candidate, election representative, polling representative, counting representative, or any other person engaged in election-related work shall tell, write, or in any manner disclose or publish to anyone the vote indicated by a voter on a ballot paper or any other matter related thereto that has come to or is in his knowledge.

(?) Notwithstanding anything contained in this Act or any other prevailing law, in any legal proceedings under this Act, no witness or any person shall be asked for whom he voted or who voted for whom.

65.

To issue orders and give directions: (1) In addition to the matters contained in this Act and the rules made under this Act, the Commission may, subject to this Act and the rules made under this Act, issue necessary orders in relation to the election, and such order shall be published in the Nepal Gazette.

(?) The Commission may give necessary instructions to the employees deployed in election work for the conduct of the election.

(?) It shall be the duty of the Government of Nepal, provincial government, local level, government offices and bodies, government, semi-government and non-government organizations and bodies, political parties, candidates, their representatives, persons engaged in publicity of election-related activities, and employees deployed in election work, to comply with the orders and instructions issued by the Commission under this section.

66. May seek assistance: (1) The Election Officer, Polling Officer, or the monitoring team, observer, or any other officer deployed by the Commission in election work may seek assistance from any government or security agency in connection with the election work.

(?) If assistance is requested pursuant to sub-section (1), it shall be the duty of all concerned to provide necessary assistance.

67. May take action: If any Election Officer acts contrary to the Constitution, law, directive, procedure, and instructions given by the Commission, the Commission may annul the appointment of such Election Officer and appoint another Election Officer, or send a letter to the concerned body for departmental action.

Resulting vote weight: 48